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4 KOSTIANTYN MARS, PRO SE

5
6 **UNITED STATES DISTRICT COURT**
7 **WESTERN DISTRICT OF TEXAS**
8 **AUSTIN DIVISION**

8 KOSTIANTYN MARS

9 Plaintiff,

10 vs.

11 STATE OF CALIFORNIA;

12 GAVIN NEWSOM, in his official capacity as Governor of the
State of California;

13 BETH MCGOWEN, in her official and individual capacities
as Presiding Judge of the Santa Clara County Superior Court;

14 JULIE EMEDE, in her official and individual capacities as
Presiding Judge of the Santa Clara County Superior Court;

15 SANTA CLARA COUNTY SUPERIOR COURT;

16 HANNA MARS

17 (Petitioner in the above-referenced state matters);

18 and all other judges, officials, agents, and co-conspirators
acting under color of law, including but not limited to Stephen
19 Lowney, Andrea Flint, James Towery, Thomas Kuhnle,
Benjamin Williams, Michael Clark, and Jessica Tenorio,

20 Defendants.

) Case No. :
) 1:26-cv-01624-RP-ML

) **MOTION FOR**
) **EX PARTE**
) **OR**
) **EXPEDITED**
) **CONSIDERATION**
) **UNDER FEDERAL RULE**
) **OF CIVIL PROC. 65(b)**
) **(AND FOR EXPEDITED**
) **HEARING)**

) **DATE:**
) **TIME:**
) **DEPT:**

21
22 **MOTION FOR EX PARTE OR EXPEDITED CONSIDERATION**
23 **UNDER FEDERAL RULE OF CIVIL PROCEDURE 65(b)**
24 **(AND FOR EXPEDITED HEARING)**

25 Plaintiff Kostiantyn Mars respectfully requests that the Court consider and rule on his
Emergency Motion for Temporary Restraining Order and related Motion to Dismiss Criminal
26 Case B2402220 on an ex parte or highly expedited basis pursuant to Fed. R. Civ. P. 65(b), for
the following reasons:
27
28

1 1. On July 27, 2026, the Santa Clara County Superior Court received written notice of the
2 filing of the Notice of Removal in this action (confirmed by USPS records - Exhibits A, B).

3 2. Under 28 U.S.C. § 1446(d), upon receipt of notice of removal the State court “shall proceed
4 no further unless and until the case is remanded.”

5 3. Despite that statutory prohibition, the Santa Clara County Superior Court entered a
6 Judgment of Dissolution and Notice of Entry of Judgment on August 14, 2026 (Exhibits C, D)
7 signed by judge Stephen Lowney acting outside jurisdiction after his disqualification on
8 February 20, 2024 (Exhibit E) - and post-removal after receipt of the Notice of Removal on
9 July 27, 2026 (Exhibits A, B).

10 4. After receipt of the Notice of Removal on July 27, 2026, the Clerk of the Santa Clara County
11 Superior Court did not docket that notice in Criminal Case No. B2402220. As a result,
12 consumer reporting agencies continue to list Case B2402220 as a pending Santa Clara County
13 misdemeanor (Exhibit F). That incomplete public listing has caused background-screening
14 failures and has blocked Plaintiff’s employment. Plaintiff is unemployed, has been denied
15 unemployment benefits, and does not have access to blocked retirement funds. The continued
16 reporting of a pending state charge after removal is causing immediate and irreparable
17 economic harm and requires expedited ruling on Plaintiff’s Motion to Dismiss Criminal Case
18 B2402220 with Prejudice, filed June 15, 2026.

19 5. In addition, a series of orders and docket entries dated throughout 2025 and 2026 appeared
20 on the public docket of the state-court action immediately after the court received notice of
21 removal. These entries were not present on the docket prior to the court’s receipt of the Notice
22 of Removal, and were fabricated and backdated contemporaneously with the name of judge
23 Stephen Lowney acting outside of jurisdiction after his disqualification on February 20, 2024
24 (Exhibit E) - and post-removal after receipt of the Notice of Removal on July 27, 2026
25 (Exhibits A, B).

26 6. Certain of these post-removal orders, undocketed state records, and related enforcement
27 actions create an immediate risk of irreparable harm, including:

28 - Use of the void Judgment and related custody provisions to assert that the
family-law matter has been finally resolved and that Respondent holds full custody
authority, thereby facilitating further removal or retention of the minor child Max Mars
outside the United States;

- Attempts to enforce financial obligations, levies, or Qualified Domestic Relations
Orders against Plaintiff’s 401(k) and other assets;

- Continued public listing of Criminal Case No. B2402220 as a pending Santa Clara
County misdemeanor, together with related arrest and bench warrants, after the case
was removed to this Court;

- Resulting background-screening failures that have blocked Plaintiff’s employment,
while Plaintiff remains unemployed, without unemployment benefits, and without
access to blocked retirement funds; and

- Other enforcement or collateral actions that will be difficult or impossible to reverse if
ordinary notice and briefing schedules are followed.

1
2 7. Plaintiff has already served notice of the removal and of key filings to the primary opposing
3 parties and to multiple federal and state oversight authorities (as documented in Supplemental
4 Certificate of Service filed simultaneously). Additional traditional notice and a normal
5 response period will permit further post-removal harmful activity before this Court can act.

6 Plaintiff therefore requests that the Court:

7 A. Consider the Emergency Motion for Temporary Restraining Order and Motion to Dismiss
8 Criminal Case on an ex parte or highly expedited basis under Rule 65(b);

9 B. Declare void ab initio the August 14, 2026 Judgment of Dissolution, the Notice of Entry of
10 Judgment, and all related orders and docket entries entered or appearing after the state court's
11 receipt of notice of removal on July 27, 2026;

12 C. Nullify and set aside, retroactive to September 13, 2022 (commencement of DVRO fraud),
13 all orders issued in the five removed state-court cases that were entered without jurisdiction or
14 in violation of due process, including but not limited to arrest and bench warrants, restraining
15 orders, custody orders, division of 401(k) financial assets and property, coerced stipulations,
16 support orders, garnishment orders, DCSS arrears, and any orders used to restrict contact with
17 the minor child or seize or encumber financial and material assets;

18 D. Enjoin any enforcement of the foregoing void orders, including any attempt to obtain or
19 execute a Qualified Domestic Relations Order, levy, or other process against Plaintiff's
20 retirement assets; and

21 E. Conduct any necessary hearing remotely and on shortened notice.

22 Respectfully submitted,

23 DATED: August 15, 2026

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KOSTIANTYN MARS
Pro Se

EXHIBIT A -
USPS Tracking Record
Delivery / Pickup Confirmation by the Superior Court, Santa Clara County
July 27, 2026
San Jose, CA 95113
Tracking No. 9589 0710 5270 4117 1707 90

8/15/26, 4:39 PM

USPS Tracking® | USPS

ALERT: HURRICANE LALA IN HAWAII, SEVERE WEATHER IN THE UPPER MIDWEST AND OHIO ...

USPS Tracking®

FAQs >

Tracking Number:

Remove X

9589071052704117170790

Copy

Add to Informed Delivery

Latest Update

Your item was picked up at the post office at 6:36 am on July 27, 2026 in SAN JOSE, CA 95113.

Get More Out of USPS Tracking:

USPS Tracking Plus®

Delivered

Delivered, Individual Picked Up at Post Office

SAN JOSE, CA 95113

July 27, 2026 6:36 AM

See All Tracking History

[What Do USPS Tracking Statuses Mean?](#)

Text & Email Updates



USPS Tracking Plus®



Product Information



See Less ^

<https://tools.usps.com/tracking/9589071052704117170790>

1/2

EXHIBIT B -

Green Return Receipt

Received by Clerk of the Superior Court, Santa Clara County

(Signed by Ken Liu)

Tracking No. 9589 0710 5270 4117 1707 90

SENDER: COMPLETE THIS SECTION	COMPLETE THIS SECTION ON DELIVERY
■ Complete items 1, 2, and 3. ■ Print your name and address on the reverse so that we can return the card to you. ■ Attach this card to the back of the mailpiece, or on the front if space permits.	A. Signature  ☐ Agent ☐ Addressee
1. Article Addressed to: CLERK OF THE SUPERIOR COURT SANTA CLARA COUNTY SUPERIOR COURT 191 NORTH FIRST STREET SAN JOSE, CA 95113	B. Received by (Printed Name) Ken Liu C. Date of Delivery
 9590 9402 9918 5335 8416 40	D. Is delivery address different from item 1? ☐ Yes If YES, enter delivery address below: ☐ No
2. Article Number (Transfer from service label) 9589 0710 5270 4117 1707 90	3. Service Type ☐ Adult Signature ☐ Adult Signature Restricted Delivery ☐ Certified Mail® ☐ Certified Mail Restricted Delivery ☐ Collect on Delivery ☐ Collect on Delivery Restricted Delivery ☐ Priority Mail Express® ☐ Registered Mail™ ☐ Registered Mail Restricted Delivery ☐ Signature Confirmation™ ☐ Signature Confirmation Restricted Delivery
PS Form 3811, July 2020 PSN 7530-02-000-9053	Domestic Return Receipt

EXHIBIT C -
Public Docket Showing Void Post-Removal Judgment of Dissolution
Entered August 14, 2026
After Receipt of Notice of Removal
(and Other Fabricated 2026 Docket Entries)

**Public Portal**
Superior Court of California, County of Santa Clara

HOMESEARCHCALENDARSTRAFFIC PAYMENTREMOTE HEARING LOOKUPRESERVELOGIN

22FL003144

Kostiantyn Mars vs Hanna Mars

CASE INFOPARTIESEVENTSHEARINGSPRINTABLE

EVENTS

Show 25 entriesSearch:

File Date	File Type	Filed By	Comment
8/14/2026	Judgment: Notice of Entry (Family)	Hanna Mars,	
8/14/2026	Judgment: Dissolution/Contested		
8/4/2026	Minute Order		
6/16/2026	FL-NTC OF TRIAL DATE		
6/16/2026	Minute Order		
6/9/2026	Proof of Service: Mail	Hanna Mars,	Proof Of Service By Mail
6/9/2026	Declaration: Income and Expense	Hanna Mars,	Income And Expense Declaration
6/9/2026	Statement: Settlement Conference	Hanna Mars,	Respondent's Trial Brief
5/27/2026	Order: Remote Appearance	Nancy Roberts,	re: June 16; 10 am

EXHIBIT D -
Judgment of Dissolution
Santa Clara County Superior Court, Case No. 22FL003144
Filed August 14, 2026
Signed by Judge Stephen Lowney
(Post-Removal / Post-Disqualification)

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address):		FL-180
Nancy L. Roberts 187211 Law Office of Nancy L. Roberts 155 E. Campbell Ave., 255 Campbell, CA 95008 TELEPHONE NO.: (408) 871-0775 FAX NO. (Optional): E-MAIL ADDRESS (Optional): nlrobertslaw@sbcglobal.net ATTORNEY FOR (Name): <u>Hanna Mars</u>		FOR COURT USE ONLY Filed August 14, 2026 Clerk of the Court Superior Court of CA County of Santa Clara 22FL003144 By: limasa
SUPERIOR COURT OF CALIFORNIA, COUNTY OF STREET ADDRESS: 201 N. First Street MAILING ADDRESS: 191 N. First Street CITY AND ZIP CODE: San Jose, CA 95113 BRANCH NAME: Family Justice Center		
MARRIAGE OR PARTNERSHIP OF PETITIONER: KOSTIANTYN MARS RESPONDENT: HANNA MARS		
☒ DISSOLUTION ☐ JUDGMENT ☐ LEGAL SEPARATION ☐ NULLITY ☐ Status only ☐ Reserving jurisdiction over termination of marital or domestic partnership status ☐ Judgment on reserved issues Date marital or domestic partnership status ends: August 4, 2026		CASE NUMBER: 22FL003144

1. ☐ This judgment ☐ contains personal conduct restraining orders ☐ modifies existing restraining orders.
 The restraining orders are contained on page(s) _____ of the attachment. They expire on (date): _____

2. This proceeding was heard as follows: ☐ Default or uncontested ☐ By declaration under Family Code section 2336

☒ Contested ☐ Agreement in court

a. Date: 7/31/2023, 11/13/2023 and 8/4/2026 Dept.: 79 Room: _____
 b. Judicial officer (name): Hon. Stephen Lowney ☐ Temporary judge
 c. ☒ Petitioner present in court ☐ Attorney present in court (name): only on 7/31/2023 and 11/13/2023
 d. ☒ Respondent present in court ☒ Attorney present in court (name): Nancy L. Roberts
 e. ☐ Claimant present in court (name): _____ ☐ Attorney present in court (name): _____
 f. ☐ Other (specify name): _____

3. The court acquired jurisdiction of the respondent on (date): 10/28/2022
 a. ☐ The respondent was served with process.
 b. ☒ The respondent appeared.

THE COURT ORDERS, GOOD CAUSE APPEARING

4. a. ☒ Judgment of dissolution is entered. Marital or domestic partnership status is terminated and the parties are restored to the status of single persons
 (1) ☒ on (specify date): August 4, 2026
 (2) ☐ on a date to be determined on noticed motion of either party or on stipulation.
 b. ☐ Judgment of legal separation is entered.
 c. ☐ Judgment of nullity is entered. The parties are declared to be single persons on the ground of (specify): _____

d. ☐ This judgment will be entered nunc pro tunc as of (date): _____
 e. ☐ Judgment on reserved issues.
 f. The ☐ petitioner's ☐ respondent's former name is restored to (specify): _____
 g. ☐ Jurisdiction is reserved over all other issues, and all present orders remain in effect except as provided below.
 h. ☒ This judgment contains provisions for child support or family support. Each party must complete and file with the court a *Child Support Case Registry Form* (form FL-191) within 10 days of the date of this judgment. The parents must notify the court of any change in the information submitted within 10 days of the change, by filing an updated form. The *Notice of Rights and Responsibilities—Health-Care Costs and Reimbursement Procedures and Information Sheet on Changing a Child Support Order* (form FL-192) is attached.

Form Adopted for Mandatory Use
 Judicial Council of California
 FL-180 (Rev. July 1, 2012)

JUDGMENT
 (Family Law)

Page 1 of 2
 Family Code, §§ 2024, 2340,
 2343, 2346
 www.court.ca.gov

CEB Essential
 forms

Hanna Mars

EXHIBIT E -

Statement of Disqualification

Judge Stephen Lowney

Filed February 20, 2024

1 KOSTIANTYN MARS
2 PO BOX 8081
3 SAN JOSE, CA 95155
4 (408) 518-0088
5 CONSTANTINE.MARS@GMAIL.COM

6 PER SE

(ENDORSED)
FILED
FEB 20 2024
Clerk of the Court
Superior Court of CA County of Santa Clara
BY _____ DEPUTY

J. RARAS

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SANTA CLARA**

KOSTIANTYN MARS

Petitioner,

vs.

HANNA MARS,

Respondent.

Case No.: 22FL003144

[Honorable Beth McGowen,
Presiding Judge of Superior Court of California]

[Dept. 72 – Honorable Brooke A. Blecher,
Supervising Judge of Superior Court of California]

[Dept. 79 – Hon. Stephen P. Lowney,
Judge to be served the Disqualification Statement]

**NOTICE OF PETITIONER'S VERIFIED
STATEMENT OF DISQUALIFICATION OF
SANTA CLARA SUPERIOR COURT JUDGE
STEPHEN P. LOWNEY
FOR IMPERMISSIBLE CONFLICT OF
INTEREST,
REQUEST FOR HIS DISQUALIFICATION,
STAY ON ALL HIS ORDERS UNTIL FINAL
JUDGMENT,
AND NULLIFICATION OF ALL HIS ORDERS
RETROACTIVELY BACK TO 10/31/2022**

[Statement of Disqualification and Memorandum of
Points and Authorities filed concurrently]

(Code Civ. Proc. 170.1(a)(6)A(iii);
170.1(a)(3)A; 170.3)

- 1 -

NOTICE OF DISQUALIFICATION STATEMENT RE: HON. STEPHEN P. LOWNEY
DISSOLUTION OF FAMILY MARS CASE NO.: 22FL003144

EXHIBIT F -
Redacted Background-Screening Record – Case B2402220 Listed as Pending

Exhibit F is a redacted consumer-reporting record showing that Case B2402220 continues to be reported as a pending Santa Clara County misdemeanor, causing denial of employment after removal of that case to this Court.

County Searches		Consider
Santa Clara, CA		Consider
VIOLATE COURT ORDER TO PREVENT DOMESTIC VIOLENCE		
Case Number	B2402220	
File Date	Aug 13, 2024	
Court Jurisdiction	SUPERIOR COURT	
County	SANTA CLARA	
State	CA	
Full Name	KOSTIANTYN MARS	
DOB	Apr 20, 1987	
Charge	VIOLATE COURT ORDER TO PREVENT DOMESTIC VIOLENCE	
Charge Type	MISDEMEANOR	
Disposition	PENDING	
Other Sentencing Info	VERIFIED SENTENCE INFORMATION NOT AVAILABLE;	

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Austin, TX 78727
Phone Number: 202.505.9444
Email: legal@marsjustice.io

KOSTIANTYN MARS, PRO SE

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION**

KOSTIANTYN MARS

Plaintiff,

vs.

STATE OF CALIFORNIA;

GAVIN NEWSOM, in his official capacity as Governor of the
State of California;

BETH MCGOWEN, in her official and individual capacities as
Presiding Judge of the Santa Clara County Superior Court;

JULIE EMEDE, in her official and individual capacities as
Presiding Judge of the Santa Clara County Superior Court;

SANTA CLARA COUNTY SUPERIOR COURT;

HANNA MARS

(Petitioner in the above-referenced state matters);

and all other judges, officials, agents, and co-conspirators acting
under color of law, including but not limited to Stephen Lowney,
Andrea Flint, James Towery, Thomas Kuhnle, Benjamin
Williams, Michael Clark, and Jessica Tenorio,

Defendants.

) Case No. :

) **PROPOSED ORDER**

) **GRANTING**

) **MOTION FOR EX PARTE**

) **OR EXPEDITED**

) **CONSIDERATION**

) **UNDER FEDERAL RULE**

) **OF CIVIL PROCEDURE**

) **65(b)**

) **DATE:**

) **TIME:**

) **DEPT:**

**PROPOSED ORDER GRANTING
MOTION FOR EX PARTE OR EXPEDITED CONSIDERATION
UNDER FEDERAL RULE OF CIVIL PROCEDURE 65(b)**

Upon consideration of Plaintiff's Motion for Ex Parte or Expedited Consideration under
Federal Rule of Civil Procedure 65(b), and good cause appearing, the Court hereby ORDERS
as follows:

1 IT IS HEREBY ORDERED that:

2 1. Plaintiff's Motion for Ex Parte or Expedited Consideration is GRANTED.

3
4 2. The Court will consider Plaintiff's Amended Emergency Motion for Temporary Restraining
5 Order and related Motion to Dismiss Criminal Case B2402220 on an expedited basis.

6 3. Any opposition shall be filed no later than _____ (short deadline).

7 4. Any hearing on the Emergency Motion for Temporary Restraining Order shall be conducted
8 remotely by video conference with mandatory audio and video recording, on a date to be set by
9 the Court.

10
11 IT IS SO ORDERED.

12
13 DATED: _____

14 United States District Judge
15 Western District of Texas
16 Austin Division
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